

19STCV41403 19STCV41403

County: los-angeles

Division: Civil Law and Motion

Department: B

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Case Number: 19STCV41403 Hearing Date: June 23, 2026 Dept: B

Tentative Ruling

Corral v. Schoof, Case no. 19STCV41403

Hearing date June 23, 2026

Plaintiff

Corral's Second Motion to Compel Arbitration

Plaintiff

Corral sued defendants S., C. and W. Schoof and Famers Insurance Group for

injuries arising out of a motor vehicle accident. The Schoof defendants were

dismissed 7/19/23, leaving only Farmers.

Plaintiff

moved to compel arbitration against Farmers on 10/30/23. The motion was denied

without prejudice on 12/14/23 for failure to attach the underlying insurance

policy or alleged arbitration agreement. 12/14/23 Min. Order. This matter was

subsequently dismissed without prejudice on 10/31/24 for plaintiff's failure to

appear. See 10/31/24 Min. Order.

The

prior court, Hon. Arian, granted plaintiff's motion to set aside. 6/16/25 Min.

Order. This matter was dismissed without prejudice again on 7/16/25, again for

plaintiff's failure to appear. 7/16/25 Min. Order. This second dismissal has

not been vacated nor set aside. Plaintiff brings a second motion to compel

arbitration against Farmers. Farmers, still dismissed, opposes.

Parties

may be compelled to arbitrate a dispute upon a court finding that: (1) there

was a valid agreement to arbitrate between the parties; and (2) said agreement

covers the controversy or controversies in the parties' dispute. Code Civ.

Proc. §1281.2; Omar v. Ralphs Grocery Co. (2004)118 Cal.App.4th 955, 961.

Plaintiff

offers the declaration page of her insurance policy with Farmers and an email

exchange between the parties' legal counsel, the same insufficient evidence

offered in support of plaintiff's first motion to compel arbitration. 12/14/23

Min. Order. Plaintiff again fails to submit the actual policy and endorsements

that allegedly contain the arbitration clause. Plaintiff fails to meet the

threshold burden of proving the existence of a valid arbitration agreement.

Further,

“[t]he issue of whether the right to compel arbitration has been waived by failure to comply with the [two-year] statute of limitations [provided in section Insurance Code §11580.2(i)] is clearly one for the determination of the court.” Freeman v. State Farm Mutual Auto Ins. Co. (1975) 14 Cal. 3d 473, 484. Plaintiff Freeman demanded arbitration more than three years after the underlying motor vehicle incident and after a jury verdict was entered in other defendants’ favor. Id. at 478-479. Freeman found plaintiff waived the right to arbitration by failing to initiate arbitration within the time limit for demanding arbitration. Id. at 490-491.

Here,

plaintiff waited more than two years after denial of the first motion to compel arbitration to re-seek arbitration. 12/14/23 Min. Order; 2/13/26 Mtn. to Compel Arbitration. Such prolonged and unexplained inaction is inconsistent with an intent to arbitrate and constitutes abandonment of that right. As in Freeman, supra, plaintiff cannot now revive a claim she allowed to lapse via years of inactivity. DENIED with prejudice.